

This court in this proceeding will determine the jurisdiction of the Circuit Court in the suit in which the order punishing for contempt was made, and if it is found that the Circuit Court had no jurisdiction in the suit, or was without power or authority to make the order enjoining the petitioner, will direct his discharge from custody.

This application does not fall within those decisions where this court has held that the case was not a proper one to be considered in proceedings under the writ of *habeas corpus* or those holding that this court may exercise its discretion in granting or withholding the writ. It is in accordance with the decision rendered in *Ex parte Yarbrough*, 110 U. S. 651. See also *Ex parte Fisk*, 113 U. S. 713; *Ex parte Wells*, 18 How. 307; *Ex parte Lange*, 18 Wall. 163; *Ex parte Rowland*, 104 U. S. 604; *Ex parte Parks*, 93 U. S. 18; *Ex parte Ayers*, 123 U. S. 443; *Ex parte Siebold*, 100 U. S. 371; *Ex parte Kearney*, 7 Wheat. 38; *Ex parte Royall*, 117 U. S. 241; *Ex parte Mayfield*, 141 U. S. 107; *Ex parte McKenzie*, 180 U. S. 536; *Delgado v. Chaves*, 140 U. S. 586; *Ex parte Watkins*, 3 Peters, 193.

The Circuit Court did not have jurisdiction because of diverse citizenship, and no Federal question was presented by the bill of complaint which justified the Circuit Court in assuming jurisdiction.

The sufficiency of the intrastate rates prescribed by chapter 232, did not present a question involving the construction of the Constitution of the United States. The adequacy or inadequacy of a prescribed rate is a question of fact only. *Illinois C. R. Co. v. Interstate Commerce Com.*, 206 U. S. 441.

Where the true meaning and construction of a constitutional provision has been settled by decisions of this court, the jurisdiction of the Circuit Court will be determined, upon a consideration of the bill of complainant, in the same manner as it would be if it appeared from all the pleadings in the case that there was no controversy as to the meaning or construction of the Constitution or law under which it is claimed the controversy arises. *Western Union Tel. Co. v. Ann Arbor R. Co.*,